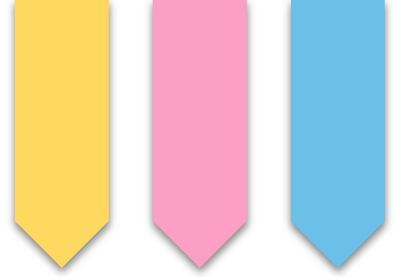




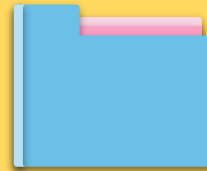
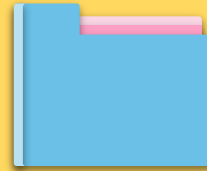
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Define intellectual
property





Define intellectual property

- Intellectual property (IP) refers to creations of the mind, such as inventions; literary and artistic works; designs; and symbols, names and images used in commerce.
- IP is protected in law by, for example patents, copyright and trademarks, which enable people to earn recognition or financial benefit from what they invent or create.

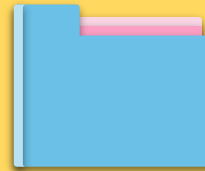
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Define intellectual
property



The various types of
intellectual property:
copyright, patent,
trademark



Copyright

- Copyright is the exclusive right to control creative works created by the author, copyright owner and performer for a specific period governed under the Copyright Act 1987.
- Works eligible for Copyright:
 - literary works;
 - musical works;
 - artistic works;
 - films;
 - sound recordings;
 - broadcasts; and
 - derivative works

- Duration of Copyright:
 - Literary, Musical or Artistic Works - Generally, this categories of copyright work reflects to the human beings which shall subsist during the life of the author plus 50 years after his death.
 - Film, Sound Recordings and Performer This categories of copyright work shall subsist for 50 years from the work was published, fixed in a fixation for the film and sound recording. For performer, the copyright work shall subsist from the performances was perform or fixation in a sound recording.
 - Broadcasts- For the copyright in broadcasts, it protection occurred in way of transmission either by wire or wireless means, the period for fifty years shall be computed from the which the broadcasts was first made.

- The rights of Copyright owners:

- Legal Rights

Author, copyright owner and performer is given an exclusive right to control under the copyright law. Legal rights that are given to them includes the rights to enforce their copyrighted works in cases for infringement either by civil or criminal action. In term of criminal prosecution, it is conducted by the Enforcement Division of Ministry of Domestic Trade, Cooperative and Consumerism (MTDCC) or Royal Malaysian Police.

- Economic Rights

Economic rights that are given torightholders includes rights of reproduction, rights of communication to public, rights to perform, showing or playing to the public, rights of distribution and rights of commercial rental. This rights can be exercised during the period of protection governed under Copyright Act 1987. Economic rights allows the owner of rights to derive financial reward from the use of his works by the user or commercial purposes. Form of economic rights can be by way of assignment, licensing and testamentary disposition.

- Moral Rights
 - Paternity Rights
This right allows the author to claim the originality rights of his or her creation.
 - Integrity Rights
This right authorizes the author to prevent any users from distortion, mutilation or other modifications of his or her works whereby the result of the modification will significantly alter the original work and adversely affect the author's honor or reputation.

Patent

- A patent is an exclusive right granted for an invention, which is a product or a process that provides, in general, a new way of doing something, or offers a new technical solution to a problem.
- A utility innovation is an exclusive right granted for a "minor" invention which does not require to satisfy the test of inventiveness as required of a patent.
- Patentable inventions:
 - New, which means that the invention has not been publicly disclosed in any form, anywhere in the world;
 - Involve an inventive step, that is to say the invention must not be obvious to someone with knowledge and experience in the technological field of the invention; and
 - Industrially applicable, meaning it can be mass produced.

- Non – patentable inventions:
 - Discoveries, scientific theories and mathematical methods;
 - Plant or animal varieties or essentially biological processes for the production of plants or animals, other than man-made living micro-organisms, microbiological processes and the products of such microorganism processes;
 - Schemes, rules or methods for doing business, performing purely mental acts or playing games;
 - Methods for the treatment of human or animal body by surgery or therapy, and diagnostic methods practiced on the human or animal body.

- Importance of patent registration:
 - To exploit the patented invention
 - To assign or transmit the patent
 - To conclude license contracts
- Duration of patent:
 - A patent is protected 20 years from the date of filing.
- Duration of utility innovation:
 - A utility innovation is protected 10 + 5 + 5 years from the date of filing subject to use.

Trade mark

- Trademark means any sign capable of being represented graphically which is capable of distinguishing goods or services of one undertaking from those of other undertakings.
- Sign– any letter, word, name, signature, numeral, device, brand, heading, label, ticket, shape of goods or their packaging, color, sound, scent, hologram, positioning, sequence of motion or any combination thereof.
- Collective Mark – A collective mark shall be a sign distinguishing the goods or services of members of the association which is the proprietor of the collective mark from those of other undertakings.
- Certification Mark – A certification mark shall be a sign indicating that the goods or services in connection with which it shall be used are certified by the proprietor of the mark in respect of origin, material, mode of manufacture of goods or performance of services, quality, accuracy or other characteristics.

- Non – registrable trade mark:
 - **Prohibited Marks**
If the use of which is likely to confuse or deceive the public or contrary to law.
 - **Scandalous or Offensive Matter**
If it contains or comprises any scandalous or offensive matter or would not otherwise be entitled to protection in any court of law.
 - **Prejudicial to the Interest or Security of the Nation**
Registrar bears the responsibility of determining the trade mark, whether it might be prejudicial to the interest or security of the nation. It may be that a mark contains an inflammatory statement or words.

- Function of trade mark:
 - Origin – A trade mark helps to identify the source and those linked for the products and services trade in the market.
 - Choice – A trade mark assists consumers to choose goods and services with ease.
 - Quality – Consumers define a certain trade mark for its known quality.
 - Marketing – Trade mark play a significant role in promoting. It's common for consumers to make purchases based on continuous effect of advertising.
 - Economic – Recognized trade mark is a valuable asset. Trade marks may be licensed or franchised

- Importance of trade mark registration:
 - **Exclusive Rights**— Registered trade marks owners have exclusive right to use their marks in trading. They also have the rights to take legal action for infringement under the Trade Mark Law against others who use their marks without consent. They can either take civil action or lodge complaints to Enforcement Division for appropriate actions under the Trade Description Act 1972.
 - **Legal Evidence**— Registration certificate issued by Registrar Office is a prima facie evidence of trade mark ownership. A certificate of registration serves as an important document to establish the ownership of goods exported to other countries.

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Define intellectual
property



12.2

The various types of
intellectual property:
copyright, patent,
trademark



12.3

Procedure to
register intellectual
property of a
product



Procedure to register intellectual property of a product

APPLYING FOR PATENT/UTILITY INNOVATION:

<https://www.myipo.gov.my/en/apply -for-patentutility -innovation/>

APPLYING FOR TRADEMARKS

<https://www.myipo.gov.my/en/apply -for-trade-marks/?lang=en#toggle-id-2>

NOTIFYING COPYRIGHT

<https://www.myipo.gov.my/en/home/>



Thank you